

not the claims statutes were complied with.” *Ngo v. County of Los Angeles* (1989) 207 Cal.App.3d 946, 951. “The procedure set forth in section 946.6 is simply an avenue of relief similar to Code of Civil Procedure section 473 in providing relief from default [citation], and is not designed to resolve the issue of actual compliance with the claim filing requirements.” *Ibid.* “A trial court’s granting of relief under section 946.6 is not a determination of compliance but one of excusing compliance.” *Ibid.* “Petitioners are, however, free to proceed on a complaint which properly pleads compliance with the claims statute . . .” *Id.* at p. 952.

Petitioners also argue Tahoe Forest Hospital District did not respond to Petitioners’ Government Claim, constituting a waiver of any defense regarding timeliness, and untimely responded to Petitioners’ application for leave to present a claim. Johnson Decl., ¶¶ 3, 4. Again, this is not the function of a petition under Government Code section 946.6. The sole purpose of a petition brought under the Code section is to relieve a party from their failure to present a timely Government Claim, not to make a finding of fact that the government entity did not properly reply.

Petitioners have not met their burden under Government Code section 946.6. The petition will be denied.

Service

A further deficiency in the Petition is the failure of Petitioners to meet the service requirements of the statute. While the “court has jurisdiction over the subject matter, but the question here is the manner in which the court is to attain jurisdiction over the person whom its judgment will affect. It would appear that personal service, or its equivalent, as provided for the service of process in civil proceedings should be necessary.” *Thierfeldt, supra*, 35 Cal.App.3d at 198. Service of summons by mail authorized by Code of Civil Procedure § 415.30 “predicates the efficacy of such service upon the execution and return of an acknowledgement of service.” *Ibid.* Additionally, a “A copy of the petition and a written notice of the time and place of hearing shall be served before the hearing...on (1) the clerk or secretary or board of the local public entity, if the respondent is a local public entity....” Gov. Code § 946.6(d)(1).

At bar, the Petition was served by mail, with no returned acknowledgment of service, on: Tahoe Forest Hospital District; County of Nevada, Clerk of the Board of Supervisors; Tahoe Forest Hospital District, Director of Quality and Regulations. POS, filed 7/20/26. There is no indication the Petition was served on the “clerk or secretary or board of the local public entity”.

9. CU0002903 Annette Merriman et al vs. Daniel Fraiman Construction et al

On the Court’s motion, Petitioners’ unopposed petition to confirm contractual arbitration award is continued to October 12, 2026, at 1:30 p.m. in Department A.

Legal Standard

Once arbitration is concluded, “any arbitrator’s award is enforceable only when confirmed as a judgment of the superior court.” *O’Hare v. Municipal Resource Consultants* (2003) 107 Cal.App.4th 267, 278. Any of the parties may file a petition with the court, which must then

“confirm the award, correct and confirm it, vacate it, or dismiss the petition.” Code Civ. Proc. §§ 1285, 1286; *EHM Productions, Inc. v. Starline Tours of Hollywood, Inc.* (2018) 21 Cal.App.5th 1058, 1063. “It is well settled that the scope of judicial review of arbitration awards is extremely narrow.” *California Faculty Assn. v. Superior Court* (1998) 63 Cal.App.4th 935, 943. “Neither the trial court, nor the appellate court, may ‘review the merits of the dispute, the sufficiency of the evidence, or the arbitrator’s reasoning, nor may we correct or review an award because of an arbitrator’s legal or factual error, even if it appears on the award’s face.’” *EHM Productions, supra*, at 1063-1064.

Discussion

Petitioners seek an order confirming the arbitration award issued in their favor on May 19, 2026.

An arbitrator’s award is enforceable only after being confirmed by a court of law. *O’Hare, supra*, 107 Cal.App.4th at 278. “An award that has not been confirmed or vacated has the same force and effect as a contract in writing between the parties to the arbitration.” Code Civ. Proc. § 1287.6. Thus, the court must first evaluate and confirm the initial arbitration award.

Filing Requirements – Code of Civil Procedure § 1285.4

Code of Civil Procedure section 1285.4 states: “A petition under this chapter shall:

- (a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement.
- (b) Set forth the names of the arbitrators.
- (c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.”

Here, Petitioners submit a copy of the arbitration agreements between the parties. Sullivan Decl., Exs. 1-2. Petitioner sets for the name of the arbitrator. Sullivan Decl., ¶ 8. Petitioner also submits the written Final Award issued by the Honorable David A. Garcia (Ret.) of JAMS. Sullivan Decl., ¶¶ 8, 10, Ex. 5. Petitioner has satisfied the filing requirements.

Service of the Arbitration Award & Timeliness of Petition – Code of Civil Procedure §§ 1283.6, 1288, 1288.4

Code of Civil Procedure section 1283.6 provides that: “The neutral arbitrator shall serve a signed copy of the award on each party to the arbitration personally or by registered or certified mail or as provided in the agreement.” In addition, a party may seek a court judgment confirming an arbitration award by filing and serving a petition no more than four years, but not less than 10 days, after the award is served. Code Civ. Proc. §§ 1288, 1288.4.

Here, the court cannot tell if this motion is timely. Petitioner submits the Final Award which was issued on May 19, 2026. Seara Decl., Ex. 5. But, there is no proof of service, let alone any evidence that Arbitrator Garcia served a signed copy of the award to each party of the arbitration personally or by registered or certified mail or as provided in the agreement. For this reason, the court will continue the motion.

Service of the Petition and Notice of the Hearing – Code of Civil Procedure § 1290.4

Code of Civil Procedure section 1290.4, the statute governing proper service of this motion states, in pertinent part:

“(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.

(b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: ¶ (1) Service within this State shall be made in the manner provided by law for the service of summons in an action.”

At bar, Petitioners served Respondents by personal service. However, the text of the “Notice of Hearing on Annette Merriman and Fred Isaak’s Petition to Confirm Arbitration Award” is blank, and it is unclear if the caption page was filled out after service was made. See Notice of Hearing, dated 6/26/26. Thus, Petitioner does not demonstrate that the notice of hearing was properly made.

10. CU0002801 In the Matter of Irina Naduhovskaya

Appearance required by counsel for Petitioner to address the status of correcting the issues with the petition as described in the August 10, 2026 tentative ruling.